

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

OCEAN NETWORK EXPRESS PTE. LTD. AND OCEAN NETWORK EXPRESS (NORTH AMERICA) INC. - POSSIBLE VIOLATIONS OF 46 U.S.C. § 41102(C)

DOCKET NO. 21-17

Served: March 8, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

SCHEDULING ORDER

On March 4, 2022, the parties filed a joint motion to revise the original schedule (“Schedule Motion”), requesting that the discovery and briefing deadlines established in the order denying motion to dismiss be extended by thirty days so that the parties can develop a complete record. Schedule Motion at 1. As explained below, the schedule will be extended but for a shorter period.

Also on March 4, 2022, each party filed a separate status report (“BOE SR” and “ONE SR”) proposing a different schedule. In their respective status reports, the parties proposed schedules that complete briefing by May 31, 2022 (BOE) or by mid-June (Respondents). The schedule adopted below completes briefing by June 13, 2022, prior to the Commission’s deadline for the initial decision in this proceeding.

Respondents raise a number of specific issues in their status report. First, Respondents assert that they do not believe there is any need for either party to retain experts and propose that BOE’s ability to present an expert be made contingent upon agreement of the parties or grant of a motion by the undersigned. ONE SR at 3. Although most proceedings at the Commission do not utilize an expert witness, BOE is entitled to present its case using relevant expert witnesses. The request to make expert witness testimony contingent upon an agreement of the parties or approval of the undersigned is denied. However, the time allowed for Respondents to respond to BOE’s expert is extended to three weeks, as requested. Moreover, the parties should consider whether or not an expert’s testimony would be relevant to the issues to be decided.

Second, Respondents contend that the schedule proposed by BOE does not permit sufficient time to prepare for depositions, that depositions may not be appropriate because of attorney-client privilege, and that there are logistical issues regarding deposing overseas witnesses. ONE SR at 4-5. The schedule below leaves open the scheduling of depositions so that the parties can work together to identify appropriate limitations and deposition dates. The parties should work to identify appropriate witnesses and to avoid questions that witnesses will not be able to answer due to relevant privileges. In addition, parties should consider the use of virtual depositions to address logistical issues. Respondents’ request that depositions be made

contingent upon agreement of the parties or authorization of the undersigned is denied. The parties should determine appropriate deposition dates, topics, and limitations.

Third, Respondents object to BOE's ability to file a reply brief and instead propose simultaneous briefing to ensure fairness while saving time. There is nothing improper about the party with the burden of proof, such as BOE, presenting its case in chief, followed by the Respondent's opposition, and then BOE's reply. This is the pattern that would be followed in an oral hearing and BOE's reply would be limited to rebutting arguments made by Respondents. However, Respondents' suggestion that simultaneous briefing would save time is well-taken. Accordingly, simultaneous briefing is adopted in the schedule below.

Neither party requested an oral hearing in their status reports and neither party built time for an oral hearing into their proposed schedules. Respondents did, however, request an oral hearing in their answer. An oral hearing would delay the proceeding and is not typically held in Commission adjudication. Accordingly, an oral hearing will not be scheduled.

Upon consideration of the schedules proposed by the parties, the following schedule is adopted. The parties will need to determine deposition dates and the last day to serve discovery requests. The parties should also exchange settlement offers, if they have not done so already.

The parties are hereby **ORDERED** to abide by the following schedule:

March 11, 2022 Parties' to submit joint stipulations of fact;

March 18, 2022 Deadline for service of parties' initial discovery requests;

April 4, 2022 Parties' responses to initial discovery due;

April 5, 2022 BOE's expert witness report deadline;

April 11, 2022 Parties file any additional joint stipulations of fact;

April 28, 2022 Respondents' expert witness report deadline;

May 2, 2022 End of discovery;

May 23, 2022 BOE and Respondents file initial brief, findings of fact, and appendix;

June 13, 2022 BOE and Respondents file opposition briefs and responses to findings of fact;

Any request for an extension will be reviewed for good cause, even if the parties agree on the requested extension. The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets

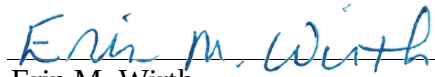
is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

Any filing submitted without page numbers, including on exhibits, may be rejected. The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited, as nearly as practicable, to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example, by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and

e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to email the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Erin M. Wirth

Chief Administrative Law Judge